

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF TOMPKINS

-----X

In the Matter of the Application of

Index No. _____/2026

JOHN DOE

Petitioner,

FOR A JUDGMENT PURSUANT TO ARTICLE 78
AND SECTION 3001 OF THE CPLR

**VERIFIED
PETITION**

-against-

CORNELL UNIVERSITY,

Respondent.

-----X

Petitioner John Doe (“Doe”) respectfully alleges, on personal knowledge and upon information and belief, by his attorneys Bushell, Sovak, Kane & Sash LLP and Saland Law P.C. that:

Preliminary Statement

This proceeding challenges a procedurally defective disciplinary determination issued by Respondent Cornell University (“Cornell”), which found Petitioner John Doe (“Doe”) responsible for Attempted Sexual Exploitation -- an offense that Cornell never charged, never provided notice of, and never afforded Doe any opportunity to defend against.

At all relevant times, Cornell was bound by its own written policies and procedures governing student conduct investigations and hearings. Those procedures are not aspirational; they constitute enforceable promises that require, at a minimum, notice of the alleged violations, a meaningful opportunity to respond, and a fair adjudicative process. Cornell violated each of those core requirements here.

Doe was investigated and required to defend himself against a discrete set of allegations that did not include Attempted Sexual Exploitation. The written notice of allegations Cornell issued against Doe included only two charges: (1) Sexual Assault, and (2) Sexual Exploitation. These two charges defined the scope of the proceeding and framed the issues to which Doe prepared his defense. He participated in the process in reliance on that notice, submitted statements, testified, responded to questions, and marshaled evidence addressing the accusations actually brought against him. At no point during the investigation, hearing, or deliberative process did Cornell amend the charges, notify Doe that *Attempted* Sexual Exploitation was being considered, or provide him an opportunity to address the elements of that offense.

Nevertheless, Cornell ultimately found Doe responsible for Attempted Sexual Exploitation -- a determination outside the scope of the process that Cornell itself prescribed.¹ This bait-and-switch deprived Doe of the most basic element of procedural fairness under Cornell's policies: notice of the charge against him and an opportunity to address it.

New York courts have repeatedly held that when a private university fails to substantially comply with its own rules in disciplinary proceedings, the resulting determination cannot stand. The requirement that a student receive clear notice of the charges and an opportunity to defend against them is not a technicality; it is the cornerstone of any fair process and embedded in Cornell's own rules. A finding of responsibility for an uncharged offense -- particularly one carrying serious reputational and academic consequences -- cannot be reconciled with those principles.

¹ Doe was found not responsible on the two charges actually brought against him -- Sexual Assault and Sexual Exploitation.

Because Cornell imposed discipline based on a charge never brought and never litigated, its determination is legally defective and must be vacated. Doe respectfully seeks an Order annulling the finding of responsibility, expunging all references to the determination from his educational records, and granting such other relief as the Court deems just and proper.

Parties and Jurisdiction

1. This is a special proceeding brought against Cornell pursuant to Article 78 and Section 3001 of the CPLR. The court has jurisdiction over Cornell pursuant to CPLR 301 and venue is proper pursuant to CPLR 503.

2. This proceeding arises out of Cornell's finding that Doe violated its policy against Attempted Sexual Exploitation even though Cornell never provided Doe with notice of that charge and never afforded him any opportunity to defend against it.

3. Doe currently resides in Ithaca, NY, and is proceeding under a pseudonym pursuant to NYS Education Law § 6448.

4. Cornell is a private university with its principal place of business located in Ithaca, New York.

Statement of Facts

I. A Report of Sexual Assault at the Chi Phi Fraternity House

5. Chi Phi is a fraternity associated with Cornell's Greek system, located in Ithaca, New York, which, *inter alia*, provides housing to approximately 40 members of the fraternity.

6. At all relevant times, Doe was a member of that fraternity and lived in the fraternity house.

7. On or about October 20, 2024, Jane Roe ("Roe") was allegedly sexually assaulted at the fraternity house and coerced into consuming ketamine and other drugs.

8. The assault allegedly occurred in a bedroom at the fraternity house known as the “Alumni Room” or “Alumni.”

II. Cornell Brings Two Charges Against Doe

9. After conducting an initial investigation, Cornell charged six members of the Chi Phi fraternity, including Doe, with Title IX violations.

10. Specifically, Cornell charged Doe with two counts under its Title IX policy (known as Policy 6.4 at Cornell). One count was for Sexual Assault, the other was for the Sexual Exploitation. *See*, Exhibit 1 (Formal Complaint Against Doe).

11. The charges alleged that Doe intentionally viewed Roe in a state of undress without her permission and touched his nose to her naked torso while inhaling Ketamine off her body. *Id.*

12. Under Cornell’s rules, Doe is presumed not responsible and the burden of proof is on Cornell to prove, by a preponderance of the evidence, that Doe sexually assaulted and/or sexually exploited Roe. *See*, Exhibit 2 at § 26.2 (Policy 6.4 Procedures).

III. Cornell’s Rules on Notice of Charges and Doe’s Opportunity to be Heard

13. Section 9 of Cornell’s rules requires that it follows its grievance process before imposing disciplinary sanctions. *Id.* at § 9. (“The University will treat complainants and respondents equitably ... by following the grievance process set forth in these Procedures before the imposition of any disciplinary sanctions or other actions ... against a respondent.”)

14. Section 10 requires Cornell to “promptly inform” Doe of any action that will impact him including the opportunity to respond to such action. *Id.* at § 10. (“The Title IX Coordinator will *promptly inform* the respondent of any actions undertaken by the University that will directly impact the respondent, including the filing of a Formal Complaint ... *and provide an opportunity for the respondent to respond to such action(s).*”) (emphasis added).

15. Section 18 requires that any formal complaint against Doe “specify the alleged prohibited conduct.” *Id.* at § 18. (“At the issuance of a Formal Complaint, the Title IX Coordinator will notify the complainant and the respondent, in writing, of the commencement of an investigation and provide both parties with a copy of the Formal Complaint, Policy 6.4, and these procedures. Such notice will: ... *specify the alleged prohibited conduct* and its date, time, and location, to the extent known”) (emphasis added).

16. Section 24.1 and 24.2 requires, respectively, that Doe have an opportunity to be heard regarding the charges against him and that he will be regularly updated on the status of the investigation against him. *Id.* at § 24.1 and 24.2. (“The ... respondent will have ... an equal opportunity to be heard” and “...will be updated at regular intervals on the status of the investigation.”)

17. Section 26.4 requires that, before the case is referred to a hearing panel, Cornell must provide Doe notice of the “charges at issue”. *Id.* at § 26.4. (“At the completion of an investigation, if a case is referred to a Hearing Panel for a hearing, a Notice of Hearing will be sent to the parties as soon as practicable. *The notice will include the charges at issue ...*” (Emphasis added).

IV. Cornell Holds a Hearing

18. Cornell held an evidentiary hearing on this matter and the hearing panel included members of Cornell faculty and staff per its rules. *Id.* at § 26.3.

19. The hearing lasted several days and included testimony from several witnesses including, *inter alia*, Doe and Roe.

20. The hearing panel had access to a voluminous investigative record containing, *inter alia*, text messages, witness statements, snapchat messages, and a medical hair follicle test confirming that Doe tested negative for Ketamine.

V. Factual Findings Made by Cornell

21. The factual findings made by Cornell's hearing panel are not disputed for the purpose of this Article 78 proceeding. *See*, Exhibit 3 at 31-37.

22. The panel found that Doe was at the fraternity house that night, he saw a message in the fraternity's Snapchat group chat that said, "Free pussy in alumni pu [pick up]," and that he went to the Alumni Room to see what was going on. *Id.* at 35-36. The panel also found that prior to entering Alumni, Doe responded to the Snapchat message by writing "the alumni shit is not a bit. First hand pov not a bit". *Id.*

23. The panel further found that, upon entering Alumni, Doe saw Roe sitting on a bed and speaking with a member of the fraternity, Roe was fully covered with sheets, and Doe asked them if they were okay, and after both said that they were, Doe left the room. *Id.* at 33.

VI. Cornell Finds Doe Not Responsible for All the Charges Brought Against Him

24. Based on the record and making credibility and factual determinations, the hearing panel determined that Doe was not responsible for sexually assaulting or sexually exploiting Roe. *Id.* at 36.

25. It found that there was no evidence that Doe intentionally viewed Roe in a state of undress or that he touched his nose to her naked torso while inhaling Ketamine off her. *Id.*

VII. Cornell Finds Doe Responsible for *Attempted Sexual Exploitation* – a Violation that Doe was neither Charged with nor Notified that it was Even Being Considered

26. Although not charged and not noticed, the hearing panel found Doe responsible for *Attempted Sexual Exploitation* because he (a) went to the Alumni Room after viewing the Snapchat message from a third party stating "Free pussy in alumni pu [pick up]," and (b) before entering the

room, he responded to the Snapchat message by writing “the alumni shit is not a bit. First hand pov not a bit”. *Id.* at pages 35-37.²

27. The hearing panel determined that, although not charged with Attempted Sexual Exploitation, Doe was guilty of it because the panel:

considered Procedures Section 3.2, which prohibits attempting to commit prohibited conduct, and found that [Doe] attempted to commit sexual exploitation when he went into the alumni room in the early morning hours of October 20, 2024. Specifically, by [Doe’s] own account, he went to the room, at least in part, because of a Snapchat message indicating there was “free pussy in alumni.” Also by [Doe’s] own account, he thought “something [. . .] bad” could be happening in the room, that someone could be “in danger,” and that the situation could involve “a lot of girls.” He also noted that, while he did not have specific knowledge of what was occurring in the room, he thought at the time, “If someone’s having sex with someone in the room, they’re not gonna send that text out.” Taking these statements together, the Panel considered it more likely than not that [Doe] understood that the 1:42 a.m. message indicated some kind of sexual situation involving a female. The Panel likewise found the objectively reasonable understanding of the message to indicate some kind of sexual situation was occurring with a female in the alumni room. In addition, although [Doe] repeatedly indicated that he thought the message was a “joke” or not real, the Panel found such statements unreasonably incompatible with his account that he was sufficiently “worried” about what was happening in the room that he went to check on the situation—particularly when he noted that it was not a social room that he frequented and that he was not close to its residents—and therefore did not credit his account in this regard. The Panel further considered [Doe’s] not a bit message and his statements acknowledging that, by the time he arrived at the alumni room, he had received confirmation that there was “a girl” present in that space and still chose to enter it. The Panel therefore determined by a preponderance of the evidence that [Doe] understood that a female was likely nude and/or engaged in sexual activity in the alumni room on October 20, 2024, and entered the room on that basis, intending to observe the same. *Id.* at 36-37.

28. Based on its finding that Doe attempted to sexually exploit Roe, the hearing panel imposed the following sanctions against him: (a) imposition of a one-way No Contact Order with

² Doe explained his text as follows: “I found out from [someone] passing by as I was walking into the [alumni] room that there was a girl in there. So, I was just saying, I mean, firsthand from somebody else that there was a girl in that room and it’s not a [‘joke’], but again, it was an immature and dumb kind of just following along with what everybody else was saying in there. I shouldn’t have said it. And it is immature and a stupid text message for sure.” *Id.* at 36

Roe, (b) requiring that he take a class on the issues of social media use and sexual harassment, as well as bystander intervention, and (c) write a reflection paper that engages with the specific circumstances for which he was found responsible. *Id.* at 90-91.

29. Putting aside whether going to see what was going on in the Alumni Room after reading that text message and then sending a text message in response is sufficient to establish Attempted Sexual Exploitation, Cornell never charged Doe with Attempted Sexual Exploitation.

VIII. Attempted Sexual Exploitation is a Distinct Charge Under Cornell's Policy

30. Attempted Sexual Exploitation is a separate and discrete charge from Sexual Exploitation under Cornell's policy. *Compare*, Exhibit 2 at § 3.2 and § 3.6. Attempted Sexual Exploitation contains a different element of the offense and different applicable defenses. *Id.*

31. Under Section 3.2 of Cornell's policy (Attempt), "A person attempts to commit prohibited conduct if, with the intent to commit such conduct, *that person engages in conduct directly tending toward completion of the prohibited conduct.*" *Id.* (emphasis added).

32. Under Section 3.6 of Cornell's policy (Sexual Exploitation), Sexual Exploitation is defined as "intentionally engaging in [. . . o]bserving another person when that person is nude or engaged in sexual activity without the knowledge and consent of the person observed[.]" *Id.* at § 3.6.

33. Thus, had Cornell informed Doe that he was being charged with Attempted Sexual Exploitation under § 3.2, he would have focused his defense, arguments, questions to witnesses, and review of the investigative file towards disproving that he intentionally engaged "in conduct directly tending toward completion of [Sexual Exploitation]."

34. Instead, his entire defense was focused on proving that he did not sexually assault Roe and that he did not intentionally engaging in sexually exploiting her (i.e., observing her nude or engaged in sexual activity) under § 3.6.

35. Doe was found responsible for Attempted Sexual Exploitation -- a violation that he was never charged with and that contained different elements than the violations he was charged with.

36. Therefore, Doe's defense to Attempted Sexual Exploitation would necessarily require a different and independent defense strategy than his defense to Sexual Exploitation/Sexual Assault.

37. Cornell, pursuant to its rules, was under an obligation to notify Doe of this new charge and give him the opportunity to directly address it before the hearing panel, but it failed to do so.

38. Doe timely appealed this decision to Cornell's appeal panel. Doe had two primary arguments on appeal. One, that Cornell improperly found him responsible for a violation (Attempted Sexual Exploitation) that he was never charged with and never notified of. And two, as discussed more fully below, that one of the hearing panel members, Savannah Bao ("Bao"), was literally driving in her car for 45 minutes and was otherwise distracted while a witness favorable to Doe was testifying.³

IX. Doe's Arguments Before Cornell's Appeal Panel

39. Doe's appeal stated, *inter alia*, that he was never charged with Attempted Sexual Exploitation and, as such, his defense was neither directed at that charge nor did he address that charge. He stated that, had he been notified of that charge, he would have presented a defense

³ In addition to being a member of the hearing panel, Bao is the Director of eCornell's Masters Programs at the business school.

specific to that charge. He further argued that he had no reason to anticipate that the hearing panel would find him responsible for a separate offense never charged or noticed. Ex. 5.

40. Doe's appeal also focused on panel member Boa and how she was, among other things, driving a car during the taking of testimony over Zoom. Doe explained that the hearing was irreparably compromised by the repeated inattention of panel member Bao. Specifically, during hours of live testimony, Bao engaged in other activities including driving a car for 45 minutes during the testimony of a co-respondent who was with Doe that night and was a critical witness to Doe's defense, and doing other work. Ex. 5.

41. Doe argued that Boa's failure to pay attention was not trivial and led to Boa finding him liable for Attempted Sexual Exploitation. At the very least, it tainted the hearing with an appearance of impropriety and the clear possibility that Boa missed critical testimony that prevented her from fairly assessing the evidence. It was also incredibly distracting. Doe informed the appeal panel that he contemporaneously raised this issue with the hearing panel and requested that the hearing be adjourned until Bao was done driving, but the Hearing Chair denied his request as follows:

At this time, I have received no information that the hearing process has been tainted, let alone irreparably. Rather, when the issue was initially raised, it was addressed with the Panel members, who all confirmed their commitment to the process and thoughtful engagement with their roles therein. When it was raised a second time, it was again immediately and directly addressed. There has been no indication, e.g., of bias or prejudice on the part of any Hearing Panel member towards or against any party or witness, nor of the Panel members not adhering to applicable Policy and Procedures.

See, Exhibit 4.⁴

⁴ Under Cornell's rule § 26.10.1, the Hearing Chair has the authority to adjourn the hearing once commenced and "may also declare a 'mishearing' if the process has become irreparably tainted (e.g., prejudicial conduct by an advisor, *circumstances during a hearing rendering a panelist unsuitable for the panel, etc.*)." (Emphasis added). See, Exhibit 2 at § 26.10.1.

X. The Appeal Panel Affirms the Decision of the Hearing Panel

42. The appeal panel affirmed the decision of the hearing panel. *See*, Exhibit 5.

43. With respect to Doe's argument that he was found responsible for a violation that he was not charged with, the appeal panel held, in relevant part:

... the Notice of Formal Complaint issued to you at the commencement of this matter clearly notified you that additional violations might be identified throughout the process.⁵ That same document detailed the factual allegations underlying the misconduct for which you were found responsible.

Id.

44. With respect to Doe's argument that Bao was driving during a portion of the hearing, the appeal panel held:

We acknowledge your concerns that a hearing panelist was apparently in a vehicle for a portion of the hearing. However, our close review of the record shows this to be a substantially de minimis amount of time in a hearing that spanned many hours and multiple days. Based on the record, it is apparent that this issue was addressed promptly and did not occur outside the single instance cited in your appeal. We found no error in the hearing chair's procedural determination that the concerns raised did not render the hearing "irreparably tainted," a determination that fell well within her discretion. Therefore, we do not find this argument sufficient to warrant granting your appeal.

Id.

45. This decision was the final action of Cornell in this case, and the within Article 78 proceeding was timely filed thereafter.

⁵ As discussed above, Doe was never notified of the additional alleged violation during the process. He only found out about it for the first time after the hearing concluded in the hearing panel's decision.

Points of Law

The Court's Role in Reviewing Disciplinary Matters at Private Schools

46. "[P]rivate schools are afforded broad discretion in conducting their programs, including decisions involving the discipline, suspension and expulsion of...students". *Matter of VanHouten v. Mount St. Mary Coll.*, 137 AD3d 1293, 1295 (2d Dept 2016).

47. "[I]n dealing with and reviewing controversies involving colleges and universities" the "Courts retain a restricted role" (*Maas v. Cornell Univ.*, 94 NY2d 87, 92 (1999) (internal quotation marks omitted) and "[j]udicial review of the actions of a private school in disciplinary matters is limited to a determination as to whether the school acted arbitrarily and capriciously, or whether it substantially complied with its own rules and regulations." *Id.* at 1295.

48. "When a university has not substantially complied with its own guidelines ... the determination will be annulled as arbitrary and capricious." *Matter of Hyman v. Cornell Univ.*, 82 AD3d 1309, 1310 (3d Dept 2011).

The Requirement to Give Students Notice of the Violations that they are being Charged With

49. "... [A]dequate warning of the misconduct that could result in a student's discipline is a fundamental element of fairness in the proceeding." *Doe v. W. New Eng. Univ.*, 228 F. Supp. 3d 154, 175 (D. Mass 2016) (private school).

50. A university's failure to provide plaintiff with notice of the specific charges "may have substantially impaired the fairness of the proceeding." *Doe v. Brandeis Univ.*, 177 F. Supp. 3d 561, 604 (D. Mass. 2016) (private school).

51. A similar case can be found at *Doe v. Dartmouth*, 615 F. Supp. 3d 47, 61-62 (D.N.H. 2022) (private school). In this case, "Doe's first claim of contract violation is that Dartmouth did not fulfill its obligation under the Process Policy to provide notice. In essence, Doe argues that he

received notice that he was being investigated for one violation, but then was found responsible for another ..." *Id.*

52. Under [Dartmouth's] Misconduct Policy, sexual touching and sexual intercourse (which includes oral sex) are separate forms of misconduct. [] Doe argues that he cannot be found responsible for sexual touching when he did not receive notice of that potential violation." *Id.*

53. ".... Drawing inferences in Doe's favor, because 'sexual intercourse' and 'sexual touching' are separately delineated in the Misconduct Policy, they are separate "policy violations" for notice purposes." *Id.*

54. "Doe argued that had Dartmouth given him notice that it was charging him with 'sexual touching,' 'it would have changed the emphasis of Doe's defense if he understood the shifting nature of the claim.'" *Id.*

55. "...[I]t is reasonable to infer at this stage that proper notice would have affected Doe's defense strategy, and thus could have 'materially affected' the outcome of the proceedings. [] Thus, the court finds that Doe has adequately stated a claim that Dartmouth violated the policy by failing to provide proper notice." *Id.*

56. Another similar case can be found at *Fellheimer v. Middlebury College*, 869 F. Supp. 238, 246-247 (D. Vt. 1994) (private school) where the court found that, based on the undisputed facts, "the College did not 'state the nature of the charges with sufficient particularity to permit the accused party to meet the charges' as it had promised to do. Moreover, this deviation from the procedures established by the College did render the hearing given Fellheimer fundamentally unfair." *Fellheimer v. Middlebury College*, 869 F. Supp. 238, 246-247 (D. Vt. 1994) (private school).

57. Like here, “[the accused student] Fellheimer defended, successfully, against a charge of rape or sexual assault. He was never told that he was being charged with a separate offense of disrespect of persons, or what conduct, if proven at the hearing, would constitute that offense. As such, it was impossible for him to defend against that charge.” *Id.*

58. “Although the contractual obligations of the College are not onerous, the College's lack of notice of what conduct constituted ‘Disrespect of Persons’ violated its obligation to Fellheimer and he is entitled to Partial Summary Judgment on Count I of his complaint insofar as he seeks an order expunging his student record.” *Id.*

Count I
(Declaratory Judgment Vacating the Appeal Panel’s Decision)

59. Doe repeats, reiterates, and realleges the allegations contained within this petition as if fully set forth herein.

60. A genuine dispute exists between the parties as to whether Cornell followed its rules and procedures with respect to Doe’s hearing.

61. Cornell’s application of its policies and procedures was arbitrary, capricious, and contrary to its own rules.

62. A declaratory judgment on this issue would have the effect of establishing the legal rights and obligations among and between the parties to this proceeding.

63. Doe has no adequate remedy at law.

64. Here, as discussed above, Cornell violated its own rules.

65. For example, Cornell violated Section 10 of its policy requiring that it “promptly inform” Doe of any action that will impact him including the opportunity to respond to such action. *See*, Exhibit 2 at § 10.

66. It violated Section 18 of its policy requiring that any formal complaint against Doe “specify the alleged prohibited conduct”. *Id.* at § 18.

67. It violated Sections 24.1 and 24.2 of its policy, respectively, requiring that Doe have an opportunity to be heard regarding the charges against him and that Cornell would regularly update him on the status of the investigation against him. *Id.* at §§ 24.1-24.2.

68. It violated Section 26.4 of its policy requiring that, before the case is referred to a hearing panel, Cornell must provide Doe notice of the “charges at issue”. *Id.* at § 26.4.

69. Cornell, by not following its own rules, prejudiced Doe because Doe was never made aware that he was being charged with Attempted Sexual Exploitation and he could therefore not prepare for or defend same.

70. The elements underlying a charge of Attempted Sexual Exploitation differ from the charges that Doe was actually charged with (i.e., Sexual Assault and Sexual Exploitation). Specifically, Attempted Sexual Exploitation required that Doe (a) intentionally attempt to commit sexual exploitation, and (b) engages in conduct directly tending toward completion of sexual exploitation. *Compare, Id.* at § 3.2 and § 3.6.

71. Had Cornell informed Doe that he was being charged with Attempted Sexual Exploitation, he would have focused his defense on proving that he (a) did not intentionally attempt to commit sexual exploitation, and (b) did not engage in conduct directly tending toward completion of sexual exploitation.

72. Indeed, the entire foundation of Cornell’s allegations against Doe was that he succeeded in seeing Roe naked and snorted ketamine from her body. Doe was found not responsible for both. At no time was Doe aware that he had to defend against allegations of completing the prohibited acts *and* attempting to complete the prohibited acts.

73. Based upon the foregoing, Doe is entitled to a judgment pursuant to CPLR § 3001 declaring that Cornell misapplied its relevant policies against him, acted in an arbitrary and capricious manner and that its decision against Doe is annulled.

74. Any declaratory judgment in Doe's favor should also declare the vacatur of any and all penalties imposed on him with respect to this matter and the expungement of all references to the underlying charges contained in his academic record.

Requested Relief

For the aforementioned reasons, Doe respectfully requests that this court:

(a) pursuant to CPLR § 3001 declare that Cornell misapplied its relevant policies and procedures against Doe, acted in an arbitrary and capricious manner and that its decision against Doe be annulled;

(b) vacate of any and all penalties imposed on Doe with respect to this matter and the expungement of all references to the underlying charges contained in his academic record; and

(c) order such other and further relief that the court deems just and proper.

Dated: March 30, 2026

Saland Law PC

By: /s/ Jeremy Saland
Jeremy Saland
274 Madison Avenue, Suite 1401
New York, NY 10016
(212) 312-7129
jsaland@salandlaw.com

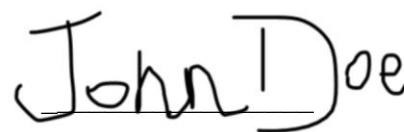
Bushell, Sovak, Kane & Sash LLP
Alan E. Sash, Esq.
274 Madison Avenue, Suite 1401
New York, NY 10016
(212) 949-4700
asash@bushellsovak.com

Verification

State of New York)

County of Tompkins)

I am John Doe, the petitioner in the above proceeding. I have read the petition and the contents therein are true to the best of my knowledge, except as to matters alleged on information and belief, and that as to those matters, I believe it to be true.



John Doe

Sworn to before me this
23 day of March 2026

Alan E. Sash
Notary Public

Alan E. Sash
Reg. No. 02SA6041112
Westchester County, New York
Exp. 05/01/2030